

2ND SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
15 & 16 Geo. 5. c. 20.	The Law of Property Act, 1925.	In section one hundred and fifty-three, in subsection (6), in paragraph (i), the words "or is subject to a restraint on anticipation". In section one hundred and sixty-nine, the words "is restrained from anticipation or from alienation" and the word "or" where it occurs for the third time.
25 & 26 Geo. 5. c. 30.	The Law Reform (Married Women and Tortfeasors) Act, 1935.	In section two, in subsection (1), the proviso, and subsections (2) and (3).
11 & 12 Geo. 6. c. 63.	The Agricultural Holdings Act, 1948.	In section eighty-five, in paragraph (a), the words "and is not restrained from anticipation".

CHAPTER 79

An Act to provide for the making to colliery concerns and subsidiaries of such concerns of further income payments for the period between the primary vesting date and the date on which compensation under the Coal Industry Nationalisation Act, 1946, in respect of transfers of transferred interests of the concerns and subsidiaries is satisfied in full, and for purposes connected therewith.
[16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Provision
for further
revenue
payments to
colliery
concerns and
subsidiaries.
9 & 10 Geo. 6.
c. 59.

1.—(1) The following provisions of this section shall have effect with respect to the making to colliery concerns, and to subsidiaries of such concerns, of payments in respect of the year nineteen hundred and forty-nine and subsequent years towards satisfaction of the right to interim income conferred by subsection (2) of section nineteen of the Coal Industry Nationalisation Act, 1946 (hereinafter referred to as "the principal Act").

(2) A colliery concern or a subsidiary of a colliery concern shall, in respect of the year nineteen hundred and forty-nine and in respect of any subsequent year before that in which compensation under the principal Act in respect of the transfer of the transferred interests of the concern or subsidiary is satisfied in full, be entitled to a payment of an amount equal to the amount by which one third of the comparable ascertained revenue of the concern, or of the subsidiary, as the case may be, attributable to activities thereof for which the transferred interests thereof were used or owned exceeds an amount equal to interest for the year in question on the aggregate amount of that compensation satisfied before the end of that year.

The rate of interest prescribed by order of the Treasury under paragraph (a) of subsection (2) of section twenty-two of the principal Act which applies to any such year as aforesaid or to any part of such a year shall be the rate of interest for the purposes of this subsection as respects that year or that part of that year.

(3) A payment to which a colliery concern or a subsidiary of a colliery concern is entitled under the last foregoing subsection in respect of any year shall be treated for the purposes of paragraph (a) of subsection (2) of section twenty-two of the principal Act as being made towards satisfaction of the aggregate of the proportions attributable to that year of amounts which that paragraph requires to be paid as additions to stock issued or money payments made after the expiration of that year in satisfaction of compensation in respect of transfers of transferred interests of the concern or subsidiary.

(4) Payments to be made under this section shall be in the form of payments in money made by the Minister out of sums to be issued to him out of the Consolidated Fund of the United Kingdom or the growing produce thereof, and section thirty-four of the principal Act (which relates to issues out of the Consolidated Fund of the United Kingdom for such payments under that Act) shall have effect as if the reference in subsection (1) thereof to that Act included a reference to this section.

(5) The Minister shall have power, exercisable by statutory instrument which shall be subject to annulment in pursuance of a resolution of either House of Parliament, to make regulations making such provision supplementary to or consequential on the foregoing provisions of this section as appears to him to be requisite or expedient, and in particular, but without prejudice to the generality of this subsection, provision may be made by regulations made thereunder for requiring the repayment to the Minister of any amount by which a payment made under this section in respect of any year to a colliery concern or subsidiary may exceed the aggregate towards satisfaction of which that payment is under subsection (3) of this section to be treated as

being made, and as to the manner of recovery of that amount and the disposal of sums recovered in or towards satisfaction of repayment thereof:

Provided that in a case where provision is made for recovering the excess or any part thereof by way of deduction from compensation in respect of transfers of transferred interests of the concern or subsidiary, provision shall be made for setting off against the deduction the aggregate of—

- (a) an amount which bears to the amount of the deduction the same proportion that the amount of income tax ultimately borne by the concern or subsidiary for the income tax year the beginning of which falls within the year in respect of which the excess arises bears to the amount which its total income for income tax purposes for that income tax year would be if it were computed without regard to any relief or deduction in respect of profits tax; and
 - (b) an amount which bears to the amount of the deduction the same proportion that the amount of profits tax ultimately borne by the concern or subsidiary (as determined in accordance with rules laid down by the regulations) in respect of the aggregate (as so determined) of its profits which are attributable to the year in respect of which the excess arises bears to that aggregate.
- (6) Nothing in the last foregoing subsection or in regulations made thereunder shall be construed as implying that a payment made under this section to a colliery concern or subsidiary, or a part of any such payment, is for any purpose anything but a payment of income to the concern or subsidiary, or as precluding the distribution as income of a payment so made.
- (7) Section twenty-eight of the principal Act (which provides for the making of payments by the National Coal Board to the Minister by way of recouping the Crown expenses and liabilities incurred by virtue of the provisions of the principal Act mentioned in paragraph (a) of subsection (1) of that section) shall have effect as if a reference to this section were included in that paragraph.
- (8) In this section the expressions “colliery concern”, “subsidiary” and “transferred interests” have the same meanings as they have for the purposes of subsection (3) of section twenty-two of the principal Act and the expression “the Minister” means the Minister of Fuel and Power, and for the purposes of subsection (2) of this section a concern’s or subsidiary’s comparable ascertained revenue attributable to activities thereof for which the transferred interests thereof were used or owned shall be taken to be the amount which, in pursuance of an election

made by the concern or subsidiary under paragraph (c) of the said subsection (3), it was taken to be for the purposes of paragraph (a) of that subsection.

2.—(1) This Act may be cited as the Coal Industry (No. 2) Short title, Act, 1949, and shall be included amongst the enactments which citation and may be cited together as the Coal Industry Acts, 1946 and 1949. extent.

(2) This Act shall not extend to Northern Ireland.

CHAPTER 80

An Act to repeal section five of the Post Office and Telegraph Act, 1940, in so far as it applies to contracts made by local telegraph authorities.

[16th December 1949.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) The provisions of section five of the Post Office and Telegraph Act, 1940 which provide for increases in charges under contracts made by local telegraph authorities, that is to say—

(a) paragraph (b) of subsection (1) of that section,

(b) subsection (6) thereof,

(c) in subsection (10) thereof the words “or the local telegraph authority” in the definition of “exchange service contract”, the definition of “local telegraph authority”, and the words from “or by virtue” to “local telegraph authority” and the words “or by that authority” in the definition of “telegraph contract”,

Repeal of provisions of s. 5 of Act of 1940 relating to local telegraph authorities.
3 & 4 Geo. 6.
c. 25.

shall not have effect in relation to any contract made by a local telegraph authority after the passing of this Act, and in relation to any contract made by such an authority before the passing of this Act shall cease to have effect on the earliest date after the passing of this Act as from which, in the exercise of the powers conferred by the contract, the local telegraph authority alter the amount of the subscription payable under the contract:

Provided that nothing in this section shall affect the operation of the said provisions in relation to any charge under such a contract made before the passing of this Act, being a charge which under the terms of the contract is payable before that date.